

SENATE No. 667

The Commonwealth of Massachusetts

PRESENTED BY:

Bruce E. Tarr

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act providing for alternative DPA compliance.

PETITION OF:

NAME:

Bruce E. Tarr

DISTRICT/ADDRESS:

First Essex and Middlesex

SENATE No. 667

By Mr. Tarr, a petition (accompanied by bill, Senate, No. 667) of Bruce E. Tarr for legislation to provide for alternative designated port authorities compliance. Environment and Natural Resources.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 577 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act providing for alternative DPA compliance.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 21A of the General Laws, as appearing in the 2022 Official
2 Edition, is hereby amended by inserting after section 5 the following section:-

3 SECTION 5A. Notwithstanding any general or special law to the contrary, the secretary
4 or an appointee shall, in conjunction with the special waterfront development oversight
5 commission, comment on and approve proposals for development in Designated Port Authorities
6 that do not meet strict compliance with said requirements in chapter 21A or 91.

7 SECTION 2. There shall be established a special waterfront development oversight
8 commission to comment on and approve all requests from municipalities for proposals to
9 develop and build in Designated Port Areas.

10 The commission shall have 7 members. The commission shall include: 1 member to be
11 appointed by the governor, 1 member to be appointed by the secretary of energy and
12 environmental affairs; 1 member to be appointed by the president of the senate for a term of 2
13 years; 1 member to be appointed by the speaker of the house of representatives for a term of 2
14 years; 1 member to be appointed by the senate minority leader, for a term of 2 years; and 1
15 member to be appointed by the minority leader of the house of representatives. Each member of
16 the commission shall be an expert with experience in the fields of environmental policy, public
17 policy, municipal administration, or economic development. One of the members shall be
18 appointed by the governor to serve as chairperson of the commission.

19 The commission shall develop criteria for applicants to seek alternative compliance with
20 the laws and regulations governing Designated Port Authorities. Said regulations shall not allow
21 for the approval of any project that in the opinion of the commission undermines the integrity of
22 our environment. Any project approved by the commission shall be submitted to the clerks of
23 the House of Representatives and the Senate and the chairs of ranking members of the joint
24 committee on municipalities and regional government. Said project shall not commence without
25 approval from the general court.